

		Where the contract contains a provision for the Defendant to act as it did, case law does not support the existence of an implied covenant requiring it to act otherwise. <i>Carma Developers (Cal.), Inc. v. Marathon Development California, Inc.</i> (1992) 2 Cal.4th 342, 374 (“We are aware of no reported case in which a court has held the covenant of good faith may be read to prohibit a party from doing that which is expressly permitted by an agreement. On the contrary, as a general matter, implied terms should never be read to vary express terms. [Citations.]”), The demurrer to this cause of action is sustained. Defendant to give notice.
3	Holland vs. South Orange County Community College District 2022-01265727	Motion to Compel Deposition (Oral or Written) Defendant South Orange County Community College District’s motion to compel compliance with its deposition subpoena to third-party Palo Alto Medical Foundation is denied. “Unless otherwise limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence...” (Code Civ. Proc., § 2017.010.) Defendant’s subpoena to third-party Palo Alto Medical Foundation requests “[a]ny and all records...pertaining to Joy M. Holland for all dates...” (Walsh Decl., Ex. A.) Defendant argues that there is good cause to compel production of these documents pursuant to its subpoena because Plaintiff complains of ongoing health issues including emotional distress, PTSD and major depressive disorder. (Walsh Decl., ¶¶ 3, 4, Ex. B.) Defendant “infers” that Plaintiff attributes these issues to Defendant. (Walsh Decl., ¶ 4.) Defendant contends that these records are relevant to its defenses with respect to Plaintiff’s discrimination and failure to accommodate claims in particular, because Plaintiff must prove that she had a mental disability and she could do the essential functions of her job. (See <i>Furtado v. State Personnel Bd.</i> (2013) 212 Cal.App.4th 729, 744.) This complies with the code and the motion is granted.

		Defendant to give notice.
4	Hulsey vs. Trofimenko MD 2023-01299440	Motion to Vacate Plaintiff Rickie Hulsey's motion to vacate the judgment entered on 5/15/25 granting Defendant Vera Trofimenko's Motion for Summary Judgment is denied. Plaintiff argues pursuant to Code Civ. Proc., § 473(d) that the judgment is void because the Court ruled without holding the noticed hearing, no tentative was issued, and no oral argument permitted. The record contradicts Plaintiff's arguments. The hearing on the MSJ took place on 4/28/25. (ROA 394.) All parties were present pursuant to the Minute Order. The motion was also properly noticed; Plaintiff filed an opposition. (ROA 346, 367; See also Farkas Decl., Ex. A.) Accordingly, Plaintiff's motion is denied. Defendant shall give notice.
5	Kozbur vs. American Honda Motor Co., Inc. 2025-01476995	Motion to Compel Production The court will hear from counsel why this motion is not part of the case coordination.
6	Lamrabet vs. Cooper 2022-01271912	Motion to Set Aside/Vacate Judgment The motion of plaintiff Sabah Lambabet, individually and behalf of minor plaintiff Rita Kwon, for an order setting aside or reconsidering its last decision is DENIED. <u>Discussion.</u> Self-represented plaintiff Sabah Lambabet, individually and behalf of minor plaintiff Rita Kwon, moves for an order setting aside or reconsidering its last decision. Defendants Ken Cooper and